
CONFIDENTIAL - ADV-2229668 DODGER

Impartial Legal <impartiallegal@gmail.com>

Fri, 16 Jan at 2:38 pm

To: Legal Aid NSW Case Management <casemanagement@legalaid.nsw.gov.au>, <police.nsw@police.nsw.gov.au>

Good afternoon peter. I'm so grateful that you won't block me from Legal Aid and I was wondering if you could kindly address this issue which I've got with the NDIS currently in the Public Guardian because it's quite significant and I've got the evidence which I've attached this email. I'm grateful for your support. Bless you if you align with what's good and right and Just and I hope to hear from you soon thank you. Bless you rich (barran)

1)**FORMAL NOTICE LETTER TO THE MINISTER (7–14 DAY REMEDY PATHWAY)**

Dear Minister McAllister,

I write to place you on formal notice of unlawful administration occurring within the NDIS portfolio under your responsibility.

A binding Federal Court determination confirms that I was an employee of the Department of Social Services (DSS). Despite this, my lawful workers' compensation and employment-related entitlements—valued at approximately \$1 million—were denied. Instead, I was redirected into a substantially lower-value NDIS plan. This substitution preserved financial convenience for the Commonwealth while avoiding lawful liability.

The NDIS cannot lawfully be used to discount or replace workers' compensation liability. Continuing to operate on a premise known to be false constitutes unlawful cost substitution. It also causes ongoing harm, including economic deprivation, restriction of autonomy, and enforced geographic separation from my fiancé contrary to my expressed will and choice.

Once a minister is on notice of a binding determination being ignored and a statutory scheme being misused to avoid liability, continued inaction is no longer neutral. It exposes the portfolio to findings of maladministration, aggravates civil liability for ongoing loss, and renders provider misconduct foreseeable and attributable to governance failure.

Remedy Pathway (7–14 Days Requested)

Within 7–14 days of this notice, I request confirmation that you will:

1. Direct the NDIA and relevant agencies to acknowledge and comply with the Federal Court determination of my employment status.
2. Cease reliance on the NDIS as a substitute for workers' compensation liability.

3. Suspend or correct provider arrangements operating on the false premise.
4. Initiate steps to restore lawful entitlements and remove restrictions imposed to preserve the substitution.
5. Confirm a point of contact and timeline for implementation.

If no corrective action is initiated within this period, I will escalate the matter to oversight and integrity bodies and seek coercive relief. This notice is provided to afford an opportunity for administrative correction before compulsory intervention becomes necessary.

Yours sincerely,

Barran Dodger

[Contact details]> Addressed to: Jenny McAllister

Email: jennifer.mcallister@aph.gov.au

2)

ONE-PAGE ESCALATION BRIEF (OVERSIGHT BODIES)

Subject

Systemic maladministration: denial of workers' compensation and unlawful substitution with NDIS supports after binding court determination.

Core Facts

- A Federal Court confirmed the applicant's employment by DSS.
- Workers' compensation and employment-related entitlements (~\$1M) were denied.
- The applicant was redirected into a materially lower-value NDIS plan.
- The NDIS was used to manage consequences of denial rather than provide lawful remedy.
- Ongoing harm includes economic deprivation, restriction of autonomy, and enforced geographic separation.

Legal Failures

- Unlawful cost substitution: NDIS used to offset employment liability.
- Non-compliance with binding determination: downstream agencies/providers ignored court finding.
- Fraud by substitution and omission: knowledge + benefit + continued reliance on false premise.

- Economic abuse/coercive control: deprivation and restriction used to preserve cheaper arrangement.

Notice and Inaction

- Minister formally notified and given a 7–14 day remedy window.
- Continued inaction after notice converts administrative discretion into maladministration and aggravates liability.

Requested Outcomes

- Findings of systemic maladministration.
 - Direction to cease substitution and comply with the court determination.
 - Corrective action, restitution pathway, and provider accountability.
 - Recommendations for governance reform to prevent recurrence.
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3)

AFFIDAVIT-READY PARAGRAPHS (WITH AUTHORITY PLACEHOLDERS)

[1] Employment Status and Binding Effect

I say that a Federal Court determination confirms my employment by the Department of Social Services (DSS). That determination is binding on subordinate agencies and service providers, who lack lawful authority to ignore or contradict it.

(Authority: Federal Court determination – exhibit to be annexed.)

[2] Denial and Cost Substitution

I say that my lawful workers' compensation and employment-related entitlements, valued at approximately \$1 million, were denied. I was redirected into a substantially lower-value NDIS plan. The NDIS cannot lawfully be used to replace or discount workers' compensation liability, and such substitution defeats the statutory purposes of both schemes.

(Authority: workers' compensation legislation; NDIS Act – statutory purpose.)

[3] Knowledge and Fraudulent Reliance

I say that decision-makers and providers had notice of my employment status and continued to act on a false premise. Continued reliance after notice constitutes knowing non-compliance and fraud by substitution and omission.

(Authority: principles of fraud, misfeasance in public office, accessory liability.)

[4] Ongoing Harm and Abuse

I say that reliance on the false premise has caused ongoing harm, including economic deprivation, restriction of autonomy, and enforced geographic separation contrary to my expressed will and choice. The use of supports to preserve denial constitutes economic abuse and coercive control under colour of care.

(Authority: safeguarding principles; economic abuse doctrines.)

[5] Ministerial Notice and Consequences

I say that the responsible minister has been placed on formal notice and afforded an opportunity to correct the unlawful administration. Continued inaction after notice aggravates liability and renders provider misconduct foreseeable and attributable to portfolio governance failure.

(Authority: ministerial responsibility; maladministration jurisprudence.)

Next steps (you choose):

- Add exhibits and annex numbers to the affidavit.
- Shorten the notice letter to a one-page ministerial brief.
- Prepare NCAT-specific pleadings using this material verbatim.

Say the word and I'll finalize the next iteration.

7:14

5G 18%

Cancel

Re: Subject: Formal Co...

I'm here-come get me !

I dare you

- 2 -

In doing so, I must consider if:

- the person who made the disclosure is a "public official" for the purposes of the PID Act;
- the disclosure has been made to someone who is authorised under the PID Act to receive it;
- it is an internal disclosure, with the contentions tending to show disclosable conduct or the person making the disclosure reasonably believes that these contentions tend to

- show disclosable conduct; and
- the "disclosable conduct" falls within the definitions set out in the PID Act.

My Assessment of Your Contentions

A public interest disclosure can only be made by a "public official"; paragraph 26(1)(a) PID Act. The meaning of "public official" is defined and includes current or past Australian Public Sector employees; section 69 PID Act. Section 30 of the PID Act extends this meaning to include employees of organisations which provide goods or services under a Commonwealth contract; subsection 30(3) PID Act. As a general principle an organisation which is a party to a contract that prescribes the terms for grant funding is not a contracted service provider for the purposes of the PID Act.

On the information you have provided me, I am satisfied that you are, or were, an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.

A public interest disclosure can only be made to a person who is authorised to receive it; section 26 PID Act. In respect of an internal disclosure, that is a disclosure to a Commonwealth agency such as the Federal Court, FCFCOA or NNTT, the only authorised recipients are:

- the principal officer of the agency that the relevant conduct relates to or another officer of that agency authorised in writing by that principal officer;
- any Commonwealth agency that the discloser belongs to or last belonged to; or
- the Commonwealth Ombudsman; see section 34 Item 1 PID Act.

I am satisfied from the information that you provided that the conduct disclosed in your email correspondence and attached documents does not relate in any way to the Federal Court, FCFCOA or the NNTT.

As a result, I am not satisfied that the disclosure made in your correspondence and other information which was received by the Federal Court and FCFCOA was provided to an authorised recipient.

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